

MONTANA DURABLE (FINANCIAL) POWER OF ATTORNEY

IMPORTANT INFORMATION

This power of attorney authorizes another person (your agent) to make decisions concerning your property for you (the principal). Your agent will be able to make decisions and act with respect to your property (including your money) whether or not you are able to act for yourself. The meaning of authority over subjects listed on this form is explained in the Uniform Power of Attorney Act, Title 72, Chapter 31, Part 3.

This power of attorney does not authorize the agent to make health-care decisions for you.

You should select someone you trust to serve as your agent. Unless you specify otherwise, generally the agent's authority will continue until you die or revoke the power of attorney or the agent resigns or is unable to act for you.

Your agent is entitled to reasonable compensation unless you state otherwise in the Special Instructions.

This form provides for designation of one (1) agent. If you wish to name more than one (1) agent, you may name a coagent in the Special Instructions. Coagents are not required to act together unless you include that requirement in the Special Instructions.

If your agent is unable or unwilling to act for you, your power of attorney will end unless you have named a successor agent. You may also name a second successor agent.

This power of attorney becomes effective immediately unless you state otherwise in the Special Instructions.

If you have questions about the power of attorney or the authority you are granting to your agent, you should seek legal advice before signing this form.

DESIGNATION OF AGENT

I, _____, the **Principal**, name
_____ as my **Agent**, whose address is
_____, and telephone number
_____.

DESIGNATION OF SUCCESSOR AGENT(S) (OPTIONAL)

If my agent is unable or unwilling to act for me, I name

_____ as my **Successor Agent**, whose address
is _____, and telephone number
_____.

If my successor agent is unwilling or unable to act for me, I name

_____ as my **Second Successor Agent**, whose
address is _____, and telephone number
_____.

GRANT OF GENERAL AUTHORITY

I grant my agent and any successor agent general authority to act for me with respect to the following subjects as defined in the Uniform Power of Attorney Act, MCA Title 72, Chapter 31, Part 3:

(INITIAL each subject you want to include in the agent's general authority. If you wish to grant general authority over all of the subjects you may initial "All Preceding Subjects" instead of initialing each subject.)

- _____ Real Property
- _____ Tangible Personal Property
- _____ Stocks and Bonds
- _____ Commodities and Options
- _____ Banks and Other Financial Institutions
- _____ Operation of Entity or Business
- _____ Insurance and Annuities
- _____ Estates, Trusts, and Other Beneficial Interests
- _____ Claims and Litigation
- _____ Personal and Family Maintenance
- _____ Benefits from Governmental Programs or Civil or Military Service
- _____ Retirement Plans
- _____ Taxes
- _____ All Preceding Subjects

GRANT OF SPECIFIC AUTHORITY (OPTIONAL)

My agent MAY NOT do any of the following specific acts for me UNLESS I have INITIALED the specific authority listed below:

(CAUTION: Granting any of the following will give your agent the authority to take actions that could significantly reduce your property or change how your property is distributed at your death. INITIAL ONLY the specific authority you WANT to give your agent.)

- _____ Create, amend, revoke, or terminate an inter vivos trust
- _____ Create or change rights of survivorship
- _____ Create or change a beneficiary designation
- _____ Authorize another person to exercise the authority granted under this power of attorney
- _____ Waive the principal's right to be a beneficiary of a joint and survivor annuity, including a survivor benefit under a retirement plan
- _____ Exercise fiduciary powers that the principal has authority to delegate
- _____ Access the content of electronic communications

REVOCATION OF PRIOR POWER OF ATTORNEY

This Power of Attorney revokes all previous Power of Attorney forms signed by me. This Power of Attorney may only be revoked in writing signed by me.

LIMITATION ON AGENT'S AUTHORITY

An agent that is not my ancestor, spouse, or descendant MAY NOT use my property to benefit the agent or a person to whom the agent owes an obligation of support unless I have included that authority in the Special Instructions.

SPECIAL INSTRUCTIONS (OPTIONAL)

You may give special instructions on the following lines:

EFFECTIVE DATE

This instrument is effective immediately unless I have stated otherwise in the Special Instructions and shall be construed as a Durable Power of Attorney, meaning that it will remain effective even if the principal becomes incapacitated and shall only terminate upon death or revocation.

NOMINATION OF CONSERVATOR OR GUARDIAN (OPTIONAL)

If it becomes necessary for a court to appoint a **conservator of my estate**, I nominate _____, whose address is _____, and telephone phone number _____.

If it becomes necessary for a court to appoint a **guardian of my person**, I nominate _____, whose address is _____, and telephone phone number _____.

RELIANCE ON THIS POWER OF ATTORNEY

Any person, including my agent, may rely upon the validity of this power of attorney or a copy of it unless that person knows it has terminated or is invalid.

SIGNATURE

Principal's Signature

Date

Printed Name

Address

Telephone Number

WITNESSES

This document was signed in my presence on this _____ day of _____, 20____ by _____ (Principal's Name).

Witness #1's Signature

Witness #2's Signature

Witness #1's Printed Name

Witness #2's Printed Name

Witness #1's Address

Witness #2's Address

Witness #1's Telephone Number

Witness #2's Telephone Number

ACKNOWLEDGMENT OF NOTARY PUBLIC

State of Montana

County of _____

This document was acknowledged before me on _____
(Date) by _____ (Name of Principal).

Signature of Notary

(Seal, if any)

My commission expires: _____

This document prepared by: _____

**AGENT'S CERTIFICATION AS TO THE VALIDITY OF POWER OF ATTORNEY
& AGENT'S AUTHORITY (OPTIONAL)**

I, _____ (Name of Agent), certify under penalty of perjury that _____ (Name of Principal) granted me authority as an agent or successor agent in a power of attorney dated _____.

I further certify that to my knowledge:

- 1) The Principal is alive and has not revoked the Power of Attorney or my authority to act under the Power of Attorney and the Power of Attorney and my authority to act under the Power of Attorney have not terminated;
- 2) If the Power of Attorney was drafted to become effective upon the happening of an event or contingency, the event or contingency has occurred;
- 3) If I was named as a successor agent, the prior agent is no longer able or willing to serve; and

4) _____

(Insert other relevant statements)

SIGNATURE

Agent's Signature

Date

Printed Name

Address

Telephone Number

WITNESSES

This document was signed in my presence on this _____ day of _____, 20____ by _____ (Agent's Name).

Witness #1's Signature

Witness #2's Signature

Witness #1's Printed Name

Witness #2's Printed Name

Witness #1's Address

Witness #2's Address

Witness #1's Telephone Number

Witness #2's Telephone Number

ACKNOWLEDGMENT OF NOTARY PUBLIC

State of Montana

County of _____

This document was acknowledged before me on _____
(Date) by _____ (Name of Agent).

Signature of Notary

(Seal, if any)

My commission expires: _____

This document prepared by: _____

IMPORTANT INFORMATION FOR AGENT

Agent's Duties

When you accept the authority granted under this power of attorney, a special legal relationship is created between you and the principal. This relationship imposes upon your legal duties that continue until you resign, or the power of attorney is terminated or revoked. You must:

- 1) Do what you know the principal reasonably expects you to do with the principal's property or, if you do not know the principal's expectations, act in the principal's best interest;
- 2) Act in good faith;
- 3) Do nothing beyond the authority granted in this power of attorney; and
- 4) Disclose your identity as an agent whenever you act for the principal by writing or printing the name of the principal and signing your own name as "agent" in the following manner:

(Principal's Name) by (Your Signature) as Agent

Unless the Special Instructions in this power of attorney state otherwise, you must also:

- 1) Act loyally for the principal's benefit;
- 2) Avoid conflicts that would impair your ability to act in the principal's best interest;
- 3) Act with care, competence, and diligence;
- 4) Keep a record of all receipts, disbursements, and transactions made on behalf of the principal;
- 5) Cooperate with any person that has authority to make health-care decisions for the principal to do what you know the principal reasonably expects or, if you do not know the principal's expectations, to act in the principal's best interest; and
- 6) Attempt to preserve the principal's estate plan if you know the plan and preserving the plan is consistent with the principal's best interest.

TERMINATION OF AGENT'S AUTHORITY

You must stop acting on behalf of the principal if you learn of any event that terminates this power of attorney or your authority under this power of attorney. Events that terminate a power of attorney or your authority to act under a power of attorney include:

- 1) Death of the principal;
- 2) The principal's revocation of the power of attorney or your authority;
- 3) The occurrence of a termination event stated in the power of attorney;
- 4) The purpose of the power of attorney is fully accomplished; or

- 5) If you are married to the principal, a legal action is filed with a court to end your marriage, or for your legal separation, unless the Special Instructions in this power of attorney state that such an action will not terminate your authority.

LIABILITY OF AGENT

The meaning of the authority granted to you is defined in the Uniform Power of Attorney Act, Title 72, Chapter 31, Part 3. If you violate the Uniform Power of Attorney Act, Title 72, Chapter 31, Part 3, or act outside the authority granted, you may be liable for any damages caused by your violation. If there is anything about this document or your duties that you do not understand, you should seek legal advice.